

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Sara Griffin	Team: Squad #4	CCRB Case #: 201809860	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Saturday, 11/24/2018 2:54 AM	Location of Incident: inside of § 87(2)(b) and 67th Precinct Stationhouse	Precinct: 67	18 Mo. SOL 5/24/2020	EO SOL 1/8/2021	
Date/Time CV Reported Tue, 11/27/2018 2:37 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 11/27/2018 2:37 PM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. SGT Alan Chau	01257	940986	067 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POF Christine Roman	18956	959153	067 PCT
2. POM Delio Fernandez	16156	957578	067 PCT
3. POM Brandon Patane	14765	961077	067 PCT
4. LT Hanjie Lu	00000	942084	067 PCT

Officer(s)	Allegation	Investigator Recommendation
A.SGT Alan Chau	Abuse: Sergeant Alan Chau entered § 87(2)(b) in Brooklyn.	
B.SGT Alan Chau	Abuse: Sergeant Alan Chau searched § 87(2)(b) in Brooklyn.	
C.SGT Alan Chau	Abuse: At the 67th Precinct stationhouse, Sergeant Alan Chau threatened to arrest § 87(2)(b)	
D.SGT Alan Chau	Abuse: At the 67th Precinct stationhouse, Sergeant Alan Chau threatened to seize § 87(2)(b)'s property.	

Case Summary

On November 24, 2018, § 87(2)(b) filed the following complaint with the CCRB via on-line website. On November 27, 2018, § 87(2)(b) filed a duplicate complaint with the CCRB via telephone.

On November 24, 2018, at approximately 2:54 a.m., Sergeant Alan Chau, from the 67th Precinct, supervised the entry into and search of § 87(2)(b)'s residence at § 87(2)(b) in Brooklyn (**Allegation A: Abuse of Authority, Substantiated**) and (**Allegation B: Abuse of Authority, Substantiated**). At the 67th Precinct stationhouse, Sergeant Alan Chau threatened to arrest § 87(2)(b) (**Allegation C: Abuse of Authority, Complainant Uncooperative**) and seize his property if § 87(2)(b) continued to host parties (**Allegation D: Abuse of Authority, Complainant Uncooperative**).

§ 87(2)(b) was arrested for § 87(2)(b).

There is Body Worn Camera (BWC) footage capturing the incident.

Findings and Recommendations

Allegation (A) Abuse of Authority: Sergeant Alan Chau entered § 87(2)(b) in Brooklyn.

Allegation (B) Abuse of Authority: Sergeant Alan Chau searched § 87(2)(b) in Brooklyn.

The following facts are undisputed: § 87(2)(b) frequently hosts parties inside a converted two-story barn in his backyard, where he sells alcohol and/or charges admission (Board Review 1). § 87(2)(b) advertises the property by the name of § 87(2)(b). § 87(2)(b) is detached from § 87(2)(b)'s residence, but it is enclosed by a fence that encircles § 87(2)(b)'s entire property. § 87(2)(b) does not have a liquor license for § 87(2)(b). The 67th Precinct's Club Enforcement Team had prior intelligence that the property operated as an unlicensed bottle club but had never made entry into the location on prior occasions.

On the night of the incident, PO Roman, PO Fernandez, PO Patane were assigned to the Club Enforcement Team and were under the supervision of Sgt. Alan Chau. Sgt. Chau was on modified duty and was at the 67th Precinct stationhouse during the time of incident but remained in communication with the officers via telephone while they conducted enforcement.

On the night of the incident, § 87(2)(b) allowed his niece, § 87(2)(b) to host her birthday party in § 87(2)(b)'s party was not open to the public and it was "BYOB" (Bring Your Own Beer/Alcohol). Alcohol was not being sold nor were monetary tips being exchanged for alcohol.

A neighbor who is customarily hired to clean after § 87(2)(b)'s parties entered § 87(2)(b)'s party uninvited. A dispute between attendees and the neighbor ensued and the neighbor was

assaulted outside of § 87(2)(b). The neighbor sustained a laceration to his head. The neighbor left § 87(2)(b) and returned to his residence, where a family member called 911 approximately 45 minutes after the alleged assault. In the 911 call (Board Review 2), it was relayed that the assault had taken place 45 minutes prior at a party inside of the house located at the intersection of § 87(2)(b) § 87(2)(b). The location of the 911 call was § 87(2)(b) § 87(2)(b) § 87(2)(b) address, § 87(2)(b), is not listed or provided in the Event. A description of the assault suspect was provided. It was noted that the victim had a laceration to the head.

Officers from the corresponding sector responded to § 87(2)(b) and interviewed the assault victim, who was accompanied by two female relatives. A description of the assault suspect was provided to the officers on scene. PO Roman, PO Patane, and PO Fernandez of the Club Enforcement Team responded to the location, as the job identified a house party as the incident location. An ambulance arrived to aid the assault victim, and PO Roman, PO Fernandez, and PO Patane drove to § 87(2)(b) and entered § 87(2)(b)'s residence. The assault victim remained at § 87(2)(b). Upon entry into § 87(2)(b) PO Roman, PO Fernandez, and PO Patane conducted a business inspection. PO Patane searched behind the bar on the first floor of the garage. § 87(2)(b) was arrested for § 87(2)(b).

§ 87(2)(b) was uncooperative with the investigation and a sworn statement was not obtained.

§ 87(2)(b) a party attendee, testified (Board Review 3) that party attendees were instructed to bring their own alcohol. § 87(2)(b) denied that alcohol was being sold at the party. § 87(2)(b) did not testify to admission being charged at the location.

A sub clip of PO Roman's BWC (Board Review 4) captures the officers being stopped and questioned by party goers at the fence's gate. PO Roman tells the attendees that there was a report of an assault at the location and the officers will be conducting a business inspection. At 0:15, a female attendee inquires if the owner of the residence can be contacted and PO Roman tells the female that the owner can be contacted, but that the officers are going to enter to conduct a business inspection regardless. At 0:40, PO Roman tells the female attendee that a business inspection will require the DJ to turn the music off and the lights to be turned on. At 1:00, the female attendee walks ahead of PO Roman and shuts the door to § 87(2)(b) ahead of her. PO Roman opens the door to § 87(2)(b) and walks in. PO Roman tells the party attendees that the party is over and instructs the attendees to leave the location. PO Roman inquires if the location has a liquor license and a female responds that liquor is not being sold at the location and it was "BYOB."

In PO Patane's BWC (2/2) (Board Review 5), specifically between approximately 4:00 and 27:00, PO Patane is captured searching behind the first-floor bar. At 21:00, PO Patane begins to video chat via Facetime with a "boss." The cellphone screen is initially redacted. At 22:00, the cellphone screen is no longer redacted, and Sgt. Chau is observed on the cellphone screen speaking with PO Patane regarding what was recovered behind the bar. PO Patane is not heard requesting consent to search the bar prior to beginning his search.

PO Fernandez testified (Board Review 6) that he backed the sector that responded to the assault. The assault victim had left the location of the assault and had walked down the block, where a 911 call had been placed. One of the assault victim's relatives informed PO Fernandez that alcohol was sold at the location on prior occasions, but on the night of the incident it was not and the residence was being rented out for a private event, which is why the assault victim was not allowed at the party. PO Roman had informed PO Fernandez of the known police intelligence of § 87(2)(b). PO Fernandez believed PO Roman learned from flyers § 87(2)(b) posted on Instagram advertising parties. PO Roman, PO Fernandez, and PO Patane responded to § 87(2)(b)'s residence. When asked the purpose of entering the residence, PO Fernandez initially testified it was to conduct a business inspection, but then later added that it was also to identify the assault suspect. When asked if PO Fernandez believed the residence was operating as a commercial establishment, Counsel interjected that PO Fernandez's opinion did not matter, as he had been instructed to enter. PO Fernandez then stated that Sgt. Chau instructed the officers to enter during a telephone conversation with either PO Roman or PO Patane prior to entry being made. PO Fernandez was informed that Sgt. Chau had instructed the officers to enter the residence to conduct a business inspection and to locate the assault suspect. PO Fernandez stated that officers are not allowed to enter a residence to conduct a business inspection, unless "something happened," which in this instance was the assault. PO Patane searched behind the first-floor bar for evidence of money being exchanged for alcohol. A flyer advertising future events at § 87(2)(b) was recovered (Board Review 1).

PO Roman testified (Board Review 7) that she had prior knowledge of § 87(2)(b) given she had driven by the location on prior occasions and had heard loud music playing and party attendees congregating outside. Sgt. Chau had shown PO Roman social media postings by § 87(2)(b) advertising parties at § 87(2)(b). On the night of the incident, PO Roman responded to the report of an assault in progress. The assault victim identified the location of the assault as "a house up the block." At some point during the evening, the assault victim spoke to Sgt. Chau and informed him that he paid \$5 admission into the party. PO Roman was not present for the conversation between the assault victim and Sgt. Chau and did not know the manner in which the assault victim and Sgt. Chau conversed. PO Roman did not remember if she spoke to Sgt. Chau prior to making entry and if Sgt. Chau was aware that they were conducting a business inspection. PO Roman denied that Sgt. Chau instructed the officers to enter the residence. PO Roman stated the officers made entry to conduct a business inspection, as they had determined the residence was operating as a commercial establishment. PO Roman stated that business inspections can be conducted at any time of the day, including into a residence, if it was operating as a commercial establishment. PO Roman added that because of the report of the assault, the officers were required to enter to look for the assault suspect. PO Roman emphasized that a female party attendee held the door open for the officers to enter § 87(2)(b). PO Roman saw PO Patane standing near the bar but did not know what he was doing. PO Roman conferred with Sgt. Chau over the telephone, who instructed her to arrest § 87(2)(b). PO Roman's BWC was played during the interview. The portion of the video where the female attendee closed the door in front of PO Roman was played multiple times. PO Roman reiterated that the female attendee held the door open for her, despite it being established that the door is heard closing prior to PO Roman opening the door herself and entering § 87(2)(b). PO Roman initially did not know why she instructed the party attendees to leave the location if there was potentially an assault suspect

inside, but then testified that the officers were going to conduct a business inspection and they did not want many attendees inside of the location.

PO Patane testified (Board Review 8) that he was in contact with Sgt. Chau throughout the evening via telephone. The assault victim was standing outside of § 87(2)(b) and identified the residence as the location of the assault. The officers entered the residence with the intention of locating the assault suspect and conducting a business inspection. PO Patane did not recall if he spoke to Sgt. Chau prior to making entry nor if Sgt. Chau instructed the officers to make entry. PO Patane conducted an “investigation” behind the first-floor bar. PO Patane did not remember if Sgt. Chau instructed him to search the bar. PO Patane found tickets and flyers behind the bar. The flyer was vouchered as arrest evidence. PO Patane did not find any evidence that money was being exchanged that evening. PO Patane was informed by an unidentified officer that the assault victim stated he had paid \$5 for admission that evening. PO Patane did not remember when the unidentified officer informed him of that information. PO Patane stated that a business inspection can be conducted on a residence at any hour. PO Patane added that because of the assault inside of the location, the prior known intelligence on § 87(2)(b) and that the assault victim paid \$5 to enter, that the residence was considered a commercial establishment. The Event was presented during the interview, which PO Patane reviewed. It was noted that § 87(2)(b) was not identified nor listed anywhere in the Event. PO Patane then stated he did not recall if the victim was in front of § 87(2)(b) or at another location upon initial response, but that the victim had verbally identified § 87(2)(b) to the officers as the assault location.

Sgt. Chau testified (Board Review 10) that he was in communication with the officers prior to and after entry had been made into § 87(2)(b)'s property. Sgt. Chau was on modified duty and was inside the stationhouse during the incident. A radio call came over of an assault in progress at § 87(2)(b). Sgt. Chau spoke to PO Roman via telephone regarding the assault and did not remember if the victim of the assault was still inside of § 87(2)(b) or if he had moved to another location after the assault. Sgt. Chau called the assault victim. The assault victim alleged he had paid \$5 for alcohol at the party. Sgt. Chau had intelligence that § 87(2)(b) was operating as an unlicensed bottle club from social media posts. Sgt. Chau did not remember if he had knowledge that the Club Enforcement Team was going to conduct a business inspection at the residence prior to entry being made. Sgt. Chau did not remember if he instructed the Club Enforcement Team to enter and conduct a business inspection. Sgt. Chau stated that because of the assault there was an emergency at the location and the officers could enter. Sgt. Chau stated there were no set “hours of operation” when a business inspection could be conducted on a residence if there is enough evidence of an unlicensed bottle club being run out of the location. Sgt. Chau remained in communication with the Club Enforcement Team officers via telephone and Facetime while they were inside of the residence.

Lieutenant Hanji Lu testified (Board Review 9) that he was the only supervisor who responded to the report of the assault. The assault victim identified a house down the block as the location of the assault. LT. Lu and the assault victim walked to § 87(2)(b) with the intention to ask for consent to enter and search for the assault suspect. Upon arrival to the residence, LT. Lu was informed by an unidentified officer standing outside the residence, that the Club Enforcement Team had already made entry. Upon entry, LT. Lu observed the Club Enforcement Team conducting a business inspection. LT. Lu denied having any knowledge that the Club

Enforcement Team was intending to conduct a business inspection. LT. Lu denied instructing the Club Enforcement Team to enter the location and stated that Sgt. Chau was the Club Enforcement Team's supervisor. LT. Lu denied speaking to Sgt. Chau prior to making entry into the residence. LT. Lu denied seeing the Club Enforcement Team officers taking any action to identify the assault suspect inside the location. LT. Lu and the assault victim canvassed § 87(2)(b) for the assault suspect, which returned negative results.

PO Vista's BWC (1/2) (Board Review 11) captures the responding sector speaking to the assault victim and his relatives regarding the assault and their known intelligence on § 87(2)(b). At approximately 4:20, a male officer states that a show up must be conducted with the assault victim and PO Vista states that a unit is responding to the residence. The male officer states that the unit responding to the location is going there for "fucking alternative reasons" and to shut down the club.

The Constitution is not a barrier to a police officer seeking to help someone in immediate danger, thereby excusing or justifying otherwise impermissible police conduct that is an objectively reasonable response to an apparent exigent situation. The exception is comprised of three elements: (1) the police must have reasonable grounds to believe that there is an emergency at hand and an immediate need for their assistance for the protection of life or property and this belief must be grounded in empirical facts; (2) the search must not be primarily motivated by an intent to arrest or seize evidence; and (3) there must be some reasonable basis, approximating probable cause, to associate the emergency with the area or place to be searched. People v. Doll 21 N.Y.3d 665 (2013) (Board Review 12). Curtilage questions should be resolved with particular reference to four factors: the proximity of the area claimed to be curtilage to the home, whether the area is included within an enclosure surrounding the home, the nature of the uses to which the area is put, and the steps taken by the resident to protect the area for observation by people passing by. United States v. Dunn 480 U.S. 294 (1987) (Board Review 13). If an event is being held within a private location (such as inside a house, apartment or a fenced backyard that is not open to the public) then the police need consent, an emergency, or a search warrant to enter. New York Police Department Legal Bureau's Civil Enforcement Unit's Infographic #3 (Board Review 14). According to Patrol Guide Procedure 214-34 (Board Review 15), conditions or police action directly concerning the operation of an unlicensed premise in which alcohol is being sold during an event should be brought to the attention of the State Liquor License Authority, Department of Buildings, Fire Department, or any other City agency.

§ 87(2)(g)

The officers stated that they entered § 87(2)(b)'s property to conduct a business inspection and to locate the assault suspect. § 87(2)(g)

§ 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED] Therefore, it is recommended that **Allegation A** be **Substantiated**.

§ 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED] It is therefore recommended that **Allegation B** be **Substantiated**.

Allegation (C) Abuse of Authority: At the 67th Precinct stationhouse, Sergeant Alan Chau threatened to arrest § 87(2)(b) [REDACTED]

Allegation (D) Abuse of Authority: At the 67th Precinct stationhouse, Sergeant Alan Chau threatened to seize § 87(2)(b) [REDACTED] **s property.**

§ 87(2)(b) [REDACTED] alleged in his initial complaint that Sgt. Chau threatened to arrest him and seize his property if he continued to host parties. § 87(2)(b) [REDACTED] was uncooperative with the investigation and a sworn statement was not obtained. Therefore, it is recommended that **Allegations C and D** be closed as **Complainant Uncooperative**.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) [REDACTED] has been a party (Board Review 23).
- § 87(2)(b) [REDACTED] has been party to four CCRB complaints and has been named as a victim in nine of the allegations (Board Review 16):
 - § 87(2)(b) [REDACTED]
[REDACTED]
[REDACTED]
 - [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
 - [REDACTED]
[REDACTED]
- Sgt. Chau has been a member of service for 13 years and has been a subject in 13 CCRB complaints and 44 allegations, none of which were substantiated. § 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED] (Board Review 20).

Mediation, Civil and Criminal Histories

- This complaint was not suitable for mediation.
- The New York City Office of the Comptroller has no record of a Notice of Claim being filed in regards this to complaint (Board Review 22).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

Squad No.: _____

Investigator: _____

Signature _____ Print Title & Name _____ Date _____

Squad Leader: _____

Signature	Print Title & Name	Date
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Reviewer: _____

Signature _____ Print Title & Name _____ Date _____